

Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
Title	Copy of DISTRICT SUPPORT ORGANIZATIONS
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9211 - **DISTRICT SUPPORT ORGANIZATIONS**

The Board of Education appreciates the efforts of all organizations whose objectives are to enhance the educational experiences of District students, to help meet educational needs of students and/or provide extra educational benefits not provided for, at the time, by the Board.

District support organizations are defined as any non-profit entity, group, or other organization formed and operating for the purpose of supporting District programs.

Each support organization must maintain and provide proof of general liability insurance coverage. The Board shall offer the opportunity for any authorized school support entity to receive coverage under the District's liability insurance program to protect the entity against claims resulting from damage or injury resulting from any act or omission of any school-support entity. The entity shall pay for such coverage upon written notification from the Treasurer/CFO. The District's insurance company reserves the right to deny the addition of any group to the District's policy. Should a support organization receive a denial, they would be responsible for providing proof of their own liability insurance coverage.

Because of the connection between support organizations and the School District programs and students, and because of the common use of the School District name in connection with the organization's activities, the public perception may be that the organizations and their activities are school-sponsored and approved by the Board, notwithstanding the fact that such organizations are independent entities, are not agents of the Board, and are not under the control or authority of the Board. In order to prevent disruption to the District's educational programs and injury to the District's reputation by conduct and activities of a support organization which are inconsistent with the District's mission, only organizations formally recognized by the Board will be permitted to use the School District name, as well as any logos or other insignia or emblems associated with and used to identify the District and/or school-sponsored programs and activities.

The following rules and procedures shall govern the working relationships between the Board, administration, and any District support organization. The Board may revoke formal recognition of any support group that fails to comply with these rules:

- A. School employees and Board-approved school volunteers may not be directly compensated in any manner by District support organizations.

Additionally, school employees and Board members will not manage or have sole access to District support organization funds.

- B. In addition to parents, membership should be made available to District staff and members of the community.

- C. Each District support organization shall work in cooperation with the Principal and other staff members and shall abide by the policies of the Board.

- D. It shall be the responsibility of each District support organization to monitor its activities to assure compliance with Board Policy.

The organization shall permit the Board to review all financial books and documentation upon request, and shall conduct a financial audit upon request of the Board.

1. A determination letter from the Internal Revenue Service that verifies the organization is a tax-exempt organization in good standing as described in Section 501(c)(3) of the Internal Revenue Code (if applicable).
 2. A copy of the Articles of Incorporation or amended Articles of Incorporation on file with the Ohio Secretary of State (if applicable).
 3. A copy of any filing with the Ohio Attorney General (if applicable).
 4. A copy of the support organization's Bylaws and any amendments.
 5. A current list of names, addresses and titles of each officer of the organization. No administrative employee of the School District may be an officer of the booster organization in order for the organization to obtain Board recognition.
 6. A description of the projects or activities the organization intends to undertake during the ensuing school year and the objective and goals of such projects or activities.
 7. The organization's balance sheet, together with an accounting of the organization's income and expenses for the preceding calendar year.
 8. Copies of State and Federal tax reports for the most recent year, as well as copies of any audit reports.
- E. Each District support organization is encouraged to set goals that are consistent with those of the particular programs, activities or sports being supported as articulated by the coach/advisor and/or athletic director of such program, activity or sport, to avoid duplication of effort and to maximize the benefit to the organization or group.
- F. The activities of District support organizations shall not involve the use of public funds and the District shall not assume responsibility for any purchases made on behalf of any support organization governed by this policy. The school district tax identification number shall not be used for District support organization purchases.
- G. The time, date, purpose, location and conduct of all fund-raisers on District property shall have prior approval of the administration. District support organizations are encouraged to communicate their preferred activity dates to the administration as soon as possible as consideration for dates and facilities will be given on a first come, first served basis.
- H. Each District support organization must abide by the policies and guidelines established for the use of District facilities and grounds. Projects that require any modification or alteration to District property must be pre-approved by the Superintendent.
- I. All food items and beverages available for sale to students that will be consumed on the school campus (any area of property under the jurisdiction of the school that is accessible to students during the school day) during the school day (the period from the midnight before, to thirty (30) minutes after the end of the official school day) as fund-raisers, including items sold by student clubs and organizations, parent groups, or booster clubs, shall comply with the current USDA Dietary Guidelines for Americans and the USDA Smart Snacks in School nutrition standards. Fund-raisers also include giving away goods or services, but suggesting a monetary donation. All activities must be approved by the Principal, in advance. If approved, fund-raisers that involve the sale of food items or beverages to students on campus must be consistent with regulations established in Policy 8550, Competitive Food Sales.
- J. Proceeds from District support organization fund-raisers shall not be commingled with a student activity or other Board accounts. Board employees who commingle such proceeds with a student activity or other Board account shall be subject to discipline.
- K. The Superintendent shall implement administrative guidelines that require each District support organization's fund-raising activities to be in compliance with Board policies and that the funds generated by such fund-raising activities and donated to the District are used for school-related projects that have the approval of the Superintendent and Principal.
- L. District support organizations are encouraged to obtain 501(c)(3) status so that community members may properly take tax deductions for donations to the organization.
- M. Donations from District support organizations must be made in accordance with Board Policy 7230 - Gifts, Grants, and Bequests and any accompanying guidelines. Donations shall become the property of the Board and used in a manner determined by the Board, in accordance with its policies and administrative guidelines.

Legal

7 C.F.R. Parts 210 and 220

R.C. 3313.203

Ohio Ethics Commission Advisory Opinion 2008-01